PROPERTY MANAGEMENT AGREEMENT

This Agreement is made between:

MWB Stays Ltd trading as Stayful
20 Wenlock Road, London, N1 7GU
("Agent")

and

("Owner")

for the management of the property known as:

("Property")

1. Term and Termination

This Agreement commences on _____ for an initial fixed term of six (6) months, during which early termination by the Owner will incur an early exit fee of £1,000.

After the initial term, the Agreement continues on a rolling three (3) month notice period. Either party may terminate the Agreement by giving three (3) months' written notice.

The Agent may also terminate this Agreement at any time with immediate effect if the Property is, in the Agent's sole discretion, deemed unsuitable for the purpose of short-term rentals, including but not limited to reasons such as:

- Repeated guest complaints;
- Failure to meet safety or regulatory compliance;
- Excessive wear, damage, or poor condition of furnishings or infrastructure;
- Noise complaints or issues related to neighbouring properties;
- Area unsuitability due to crime, access, or other local factors;

- Refusal by the Owner to upgrade, repair, or resolve maintenance or safety issues when required;

- Any other factor or condition the Agent reasonably believes will materially impair the guest experience or the Agent’s ability to manage the Property effectively.

2. Appointment and Authority

The Owner appoints the Agent as the exclusive managing agent of the Property for short-term lettings. The Agent is granted full authority to:

- Manage all guest-related matters, bookings, and listings;

- Operate the Property for short-term accommodation purposes;

- Manage and incur expenses reasonably required to operate the Property, including but not limited to cleaning, maintenance, linen, and consumables.

The Agent has full authority to manage pricing strategy, promotional offers, platform selection, and listing content at its discretion unless otherwise agreed in writing.

3. Agent Responsibilities

The Agent’s management responsibility commences only once the Property is in a lettable condition as determined by the Agent. Any work, improvements, or remedial actions required to bring the Property to this condition prior to listing will be outside the scope of standard management services and will be provided only on a quoted basis, subject to Owner approval.

The Agent is responsible for the day-to-day operation of the Property in relation to all short-stay letting activity and agrees to:

During the onboarding process, the Agent will:

- Complete the listing setup of the Property across relevant booking platforms and software;

- Train and familiarise the Agent's internal team with the Property details and requirements;

- Record all provided property information into the Agent's internal systems;

- Conduct an initial inspection and visit to the Property, if required, to ensure the Property is in a lettable condition and ready to receive guests.

Any additional visits beyond this initial inspection, including but not limited to visits for cleaning, maintenance, photography, or call-outs, will be chargeable and subject to availability, which the Agent cannot guarantee.

Any call-outs requested by the Owner or required due to issues outside the Agent's control (including but not limited to guest lockouts, lost keys, or emergency visits) will be chargeable and subject to availability. Charges will be quoted in advance where possible.

The Agent shall also:

- Manage and market the Property on OTA platforms (e.g. Airbnb, Booking.com);
- Coordinate guest communications, vetting, check-ins/outs, and reviews;
- Coordinate professional cleaning, laundry, restocking, and guest preparation;
- Resolve guest complaints or concerns to minimise refunds or negative reviews;
- Notify the Owner of material damage or maintenance issues;
- Attempt to recover damage costs through platform channels or guest deposits;
- Provide monthly revenue statements and payout summaries;
- Provide access to the Owner's calendar for real-time visibility;
- Restock basic consumables (toilet paper, hand soap, etc.) at cost of labour plus materials;
- Authorise urgent repairs or maintenance up to £300 without prior consent;
- Act in the best interests of preserving revenue and review quality.

Office Hours: The Agent operates Monday to Friday, 8:30am – 6:00pm, excluding public holidays. Requests outside these hours will be actioned during the next business day.

3A. Commencement of Obligations & Onboarding Period

The Owner's obligations under this Agreement shall commence immediately upon the signing of this Agreement.

The Agent's onboarding obligations also commence upon the signing of this Agreement. Onboarding typically takes between seven (7) and fourteen (14) working days; however, the Owner acknowledges and agrees that onboarding timescales are dependent on external third parties, access, documentation, property condition, supplier availability, platform processing times, and other factors outside the Agent's control.

Accordingly, any delay beyond fourteen (14) working days in completing the onboarding process shall not constitute a breach of this Agreement, nor shall it constitute valid grounds for early termination, compensation, or refund of any fees.

The Owner further acknowledges and agrees that the Agent's full management responsibilities shall commence only once the Property is in a lettable condition, as determined by the Agent in accordance with Clause 3 of this Agreement.

4. Owner Responsibilities

The Owner is solely responsible for all costs associated with the ownership, operation, and maintenance of the Property, including but not limited to mortgage payments, utility bills, council tax, insurance, repairs, and compliance with legal requirements. The Agent shall not be liable for any such costs or any losses incurred by the Owner in connection with the Property.

The Owner must:

- Ensure the Property is in a legally compliant and lettable condition;
- Provide up-to-date gas and electrical safety certificates;
- Maintain valid building, landlord, and public liability insurance covering short-term lettings;
- Failure to maintain valid insurance as outlined in this section will entitle the Agent to immediately suspend property listings or terminate this Agreement without notice;
- Supply at least three (3) complete sets of bed and bath linen, unless a linen hire service has been agreed in writing with the Agent prior to the commencement of this Agreement;
- Supply operational instructions for all appliances and systems;
- Provide 2 full sets of keys/fobs (1 guest, 1 emergency);
- Keep all utility accounts active and registered in the Owner's name;
- Provide uninterrupted broadband service.

Agent assistance with setup is available on a quoted basis, but is not included in standard management fees.

The Owner is responsible for:

- Ensuring appropriate waste collection arrangements (especially for properties not in managed blocks);

- Addressing communal or building-wide issues;
- Resolving safety and maintenance issues promptly;
- Ensuring the property is compliant with all fire safety and short-term rental regulations applicable in the relevant jurisdiction;
- Ensuring the property is in good condition for letting prior to the first booking, including thorough cleaning and full functionality of all domestic appliances (unless otherwise agreed with the Agent).

Landlord Stays and Access

If the Owner intends to stay at the property, they must coordinate this with the Agent in advance to confirm availability. Confirmed guest bookings will always take priority.

If the Owner requires unscheduled access to the property, at least 72 hours' notice is required to ensure guest privacy is respected.

Maintenance Responsibilities

The Owner remains responsible for all maintenance costs associated with the property and agrees to the following routine maintenance schedule:

- Annual professional carpet cleaning (where applicable);
- Repainting of painted walls and review of wallpapered walls annually, with repairs/replacements as needed;
- Annual servicing of any gas boiler and fire extinguishers (where applicable);
- Condition of mattresses to be reviewed every 3 years (must be CRIB 5/Source 5 compliant) and replaced as needed;
- Review and replacement of soft furnishings every 3 years as needed;
- Review and replacement of electrical items every 3 years as needed;
- Annual review and replacement of ancillary items (e.g. utensils, cookware, decor);
- Annual PAT testing of all portable appliances (TV, kettle, toaster, microwave, etc.) with records retained and available on request;
- Review of kitchen appliances every 3 years with replacement where necessary due to wear and tear.

4A. Access to the Property – Agent's Sole Discretion

During the term of this Agreement, the Agent shall have sole discretion over any access to the Property by the Owner or any third party acting on the Owner's behalf.

The Owner shall not enter, attend, access, or permit access to the Property for any reason without the Agent's prior written consent, except in the event of a genuine emergency that poses an immediate risk to life or the structural integrity of the Property.

All access requests must:

- Be made in writing via the designated Slack channel;
- Provide a minimum of seventy-two (72) hours' notice;
- Be approved in writing by the Agent before attendance.

The Agent reserves the right to refuse, delay, or impose conditions on any access request in its sole discretion, including but not limited to where such access may:

- Disrupt confirmed or anticipated guest bookings;
- Breach guest privacy or safety;
- Impact guest experience, ratings, or platform standing;
- Interfere with operational procedures.

Any unauthorised access by the Owner, or by any person acting on the Owner's behalf, shall constitute a material breach of this Agreement and may result in immediate termination without notice.

5. Cleaning & Linen

Changeover cleaning will be charged to the guest when possible. Where not, the cost is borne by the Owner.

The Agent may conduct periodic deep cleans to maintain guest standards.

Guest toiletries may be provided upon request at Owner cost.

For longer stays, the Agent will coordinate biweekly cleaning were deemed necessary by the Agent.

6. Damage & Maintenance

The Agent is not liable for guest-caused damage, wear and tear, or lost revenue due to property condition.

The Agent shall not be held liable for any costs, losses, or damages resulting from guest activity where reasonable efforts have been made to recover such costs through the applicable booking platform or directly from the guest, and those efforts are unsuccessful. The Owner acknowledges and accepts the financial risk associated with guest-caused damages that are not recoverable.

The Owner authorises the Agent to carry out repairs up to £300 without prior approval.

The Owner remains responsible for all maintenance costs unless recovered from the guest.

The Agent is not liable for contractor delays or workmanship and recommends that Owners hold adequate service policies.

7. Waste Management

If not in a managed block, the Owner must arrange regular refuse collection.

Additional costs for private collection will be passed on to the Owner.

8. Safety & Compliance

The Owner agrees to:

- Provide an up-to-date Fire Risk Assessment;
- Install CO_2 alarms where required;
- Provide fire blankets and a first aid kit;
- Ensure all safety measures comply with applicable legislation.

9. Utilities & Internet

The Owner is responsible for setting up and paying for utilities in their name.

Smart meters and thermostats are recommended where possible.

Internet must be active before listings go live.

The Agent does not attend installations. If assistance is needed, it will be quoted case-by-case at the Agent's discretion.

The Agent is not responsible for the management, setup, monitoring, or troubleshooting of smart thermostats or similar smart home devices unless explicitly agreed upon in writing prior to the agreement commencing.

10. Communication

The Owner agrees that all day-to-day communication with the Agent shall take place via Slack, using a dedicated group channel set up by the Agent. This channel will be used for:

- Daily operational communication;
- Delivery of monthly reservation and revenue statements;
- Notifications regarding maintenance, damage, guest matters, or other key updates.

The Slack channel is considered the primary and official method of communication under this Agreement.

The Agent aims to respond to all Slack communications within 24 hours during office hours (Monday–Friday, 8:30am–6:00pm, excluding public holidays).

The Owner may use email for:

- Providing documentation (e.g. certificates, invoices);
- Serving formal notices;
- Communicating in the event they cannot access Slack or have not yet been granted access.

Email responses may take up to five (5) working days. Slack should be used for any time-sensitive matters.

The Agent is happy to arrange phone calls to discuss important matters when required, provided these calls are:

- Pre-arranged with reasonable notice;
- Scheduled at a mutually convenient time.

The Agent also offers the Owner a video-based review call one month after the property goes live, as well as optional quarterly review calls thereafter to discuss performance, feedback, or suggestions for improvement.

Any complaint, concern, or dispute relating to the Agent's services must be submitted in writing via the designated Slack channel.

The Agent is not a member of, nor registered with, any alternative dispute resolution or ombudsman scheme. Any unresolved dispute or claim shall be dealt with exclusively by the courts of England and Wales.

11. Financial Terms

Management Fee: 15% plus VAT of gross rental revenue (after OTA fees, before costs of sale);
Monthly software fee of £42 will be deducted from payouts;
Additional charges (parking fines, chargebacks, supplies, etc.) are billed to the Owner;
For claims under £75, the Agent may decline to pursue to avoid guest retaliation;
If the Owner accepts pets, they accept any associated risks of damage not recoverable from guests.

The Agent may, at its discretion, allow the Owner's account to operate with a temporary negative balance up to a maximum of minus five hundred pounds (£500).
Any balance exceeding (−£500) must be settled within seven (7) days of invoice.

The Agent reserves the right to deduct and recover any outstanding fees, costs, penalties, charges, or expenses from property income prior to payout to the Owner.

The Agent may apply a 5% or 10% plus VAT booking channel commission on gross rental revenue in respect of certain direct or externally sourced bookings where a fee is incurred by the Agent to secure, source, or facilitate the booking. The Owner acknowledges that such commissions are standard industry practice and are in contrast to the 15% or higher commissions typically charged by major online travel agencies and booking platforms. This additional booking channel commission is not part of the Agent's standard management fee.

12. No Guarantee of Earnings

The Owner acknowledges that they are solely responsible for making their own independent assessment of the suitability and financial viability of operating the Property as a short-term rental. The Agent does not provide investment advice and has made no representations, warranties, or guarantees regarding the level of bookings, occupancy rates, revenue, or profit that may be achieved. Any income projections, if provided, are illustrative only and do not constitute a contractual obligation.

13. Guest Terms Acceptance

The Owner agrees that all guests must accept and adhere to Stayful's standard Guest Terms and House Rules.

These rules are enforced by the Agent, and non-compliance may result in penalties to the guest or termination of their booking.

14. Insurance Requirement

The Owner confirms that:

- They have appropriate holiday-let/landlord/building/public liability insurance in place;
- Their policy permits short-term/serviced accommodation use;
- They will provide proof of such insurance upon request.

15. Dispute Resolution

In the event of any dispute, the parties agree to attempt resolution in good faith.

The parties agree that this matter shall be subject to the exclusive jurisdiction of the courts of England and Wales.

This is a business-to-business commercial agreement. The Owner acknowledges that they are not acting as a consumer and agrees that consumer protection legislation, including but not limited to the Consumer Rights Act 2015, does not apply to this Agreement.

16. Force Majeure

Neither party shall be liable for failure to perform obligations under this Agreement if such failure is due to causes beyond their reasonable control, including but not limited to acts of God, government restrictions, natural disasters, or platform-wide system failures.

17. Exclusions & Limitation of Liability

The Agent is not liable for:

- Guest actions or non-compliance;
- Recovery of damages where insufficient evidence is provided;
- Booking platform decisions or payment gateway chargebacks;
- Lost revenue due to cancellations, overstays, or service interruptions;
- Maintenance or communal repairs not under Agent control;
- Calendar or booking updates are accessible via Owner login.

The Owner agrees to indemnify and hold harmless the Agent from any claims or losses arising from:

- Property-related injury or damage;
- Failure to meet legal safety standards;
- Contractor issues not directly caused by the Agent.

The Agent is not responsible for managing or resolving neighbour or third-party disputes. It is the Owner's sole responsibility to manage relationships with neighbours, building management, freeholders, or any other third parties.

In any claim, dispute, or allegation of loss, damage, negligence, or breach of duty brought by the Owner against the Agent, the burden of proof shall rest solely with the Owner, who must provide clear, contemporaneous, and verifiable evidence of both the alleged loss and a direct causal connection to the Agent's actions.

18. Entire Agreement

This Agreement constitutes the full agreement between the parties. Any changes must be made in writing and signed by both parties. This includes any written updates made in accordance with Clause 19 below.

19. Amendments and Updates

The Owner agrees that this Agreement is subject to updates from time to time by the Agent. The most current version of the Agreement will always be available at stayful.co.uk/terms-of-service.

The Agent will notify the Owner of any material changes to the Agreement via Slack or email. Continued use of the Agent's services after such notification shall constitute the Owner's acceptance of the updated terms. A new signature will not be required for updated versions unless the Agent expressly requests one.

In the event that the Agent makes material changes to this Agreement during the fixed initial term, and the Owner does not agree to those changes, the Owner shall have the option to continue under the terms originally agreed until the expiry of the fixed term. The Agent shall determine, in its reasonable discretion, whether the proposed changes are material.

20. Governing Law

This Agreement is governed by the laws of England and Wales. Disputes shall be resolved under the exclusive jurisdiction of the English courts.

21. Payout Information

The Agent agrees to process Owner payouts monthly within the first three (3) working days of the following month. Payouts will include a reservation statement/invoice detailing bookings, deductions, and applicable fees, which will be sent to the Owner within 24 hours of the payout.

The only circumstance where payouts will be processed early, before the end of the month, is when a booking spans two separate months and is longer than 30 nights. Early payout in such cases is only available upon Owner request and requires at least seven (7) days' notice.

For clarity, all bookings are paid out in the month the booking ends, based on the guest's check-out date. For bookings spanning multiple months, the payout will only occur after the guest has checked out.

22. Owner Interference

The Owner agrees not to interfere with the Agent's guest communications, bookings, pricing, or operational procedures. Direct communication with guests by the Owner is strictly prohibited unless

expressly authorised in writing by the Agent. Any such interference may be deemed a material breach of this Agreement and may result in immediate termination without notice.

For the avoidance of doubt, any unauthorised access to the Property in breach of Clause 4A shall be deemed a material act of interference under this Agreement.

23. Onboarding and Setup Fees

Where the Owner requires assistance beyond the standard onboarding process, including but not limited to furnishing, sourcing suppliers, coordination of tradespeople, or hands-on property setup, such services will be offered on a quoted basis and charged separately. The Agent reserves the right to require full or partial payment upfront for such services.

The Owner shall also remain liable for any operational costs, internal resources, management time and third-party costs incurred by the Agent in onboarding the Property, including where this Agreement is terminated by the Owner at any stage during the initial six (6) month term.

In the event that the Owner seeks to terminate the Agreement within the fixed term and no agreement can be reached on reimbursement of these costs, the early termination fee of £1,000 shall become immediately payable, which the parties agree represents a genuine pre-estimate of the Agent's reasonable losses, including onboarding expenditure, lost future revenue, and potential platform penalties.

If the Agent's actual reasonable costs and losses exceed £1,000, the Owner shall remain liable for the higher amount.

24. Owner's Right to Review Bookings

The Owner may view real-time booking information via the Agent's software platform but may not reject, cancel, or interfere with any confirmed or pending bookings.

The only exception is in the event of a bona fide emergency that renders the Property uninhabitable. In such cases, the Agent shall determine the appropriate course of action, including guest relocation or cancellation.

25. Breach by Owner – Early Termination Penalty

If the Owner breaches this Agreement by withdrawing the Property from management before the expiration of the applicable notice period (whether during the initial term or subsequent rolling term), and without the Agent's written agreement, the Owner shall be liable to pay:

- a fixed penalty fee of £1,000; or
- the total value of all confirmed guest bookings scheduled to occur during the unfulfilled portion of the notice period (whichever is higher).

This sum shall be due within 14 days of invoice and may be deducted from any remaining Owner payout balances. The Agent reserves the right to pursue recovery of lost revenue or damages if greater than the above amounts.

In addition, if the Owner causes or requests the cancellation of any confirmed booking, or withdraws the Property from availability in a manner that results in a platform-imposed penalty, fee, suspension, or refund, the Owner shall be liable for:

- Any platform cancellation fees or penalties;
- Any guest refund amounts not recoverable through other means;
- Any loss of revenue resulting from listing suspension or reduced visibility; and
- Any reasonable administrative or reputational damages incurred by the Agent.

These amounts will be invoiced to the Owner and are payable within 14 days or may be deducted from upcoming payouts.

For the avoidance of doubt, this clause shall also apply in full where the Owner fails to provide the required three (3) months' written notice of termination under Clause 1.

26. Non-Solicitation of Contractors and Suppliers

The Owner agrees not to contact, engage, hire, or solicit any contractor, cleaner, service provider, or supplier introduced by or working on behalf of the Agent, either directly or indirectly, during the term of this Agreement and for a period of twelve (12) months following its termination.

Breach of this clause will entitle the Agent to charge a referral fee of £1,000 per individual or supplier, payable immediately upon demand. This restriction is intended to protect the Agent's operational relationships and infrastructure.

27. Personal Property at the Property

The Agent shall not be responsible for the loss, damage, disposal, or misplacement of any personal belongings, documents, mail, furniture, or items of any kind left at the Property by the Owner, the Owner's representatives, contractors, or any third parties, whether at handover, during onboarding, or at any time during the term of this Agreement.

The Agent is not a bailee, custodian, or storage provider of the Owner's personal property. Any personal items remaining in the Property may, at the Agent's sole discretion and without liability, be discarded, removed, or otherwise disposed of without notice.

The Owner accepts full responsibility for ensuring that the Property is cleared of all personal items prior to the commencement of management services and waives any claim against the Agent in relation to such items.

28. Time Bar for Claims

Any complaint or claim by the Owner, whether relating to onboarding, management, finances, condition of the Property, alleged loss, or otherwise, must be:

(a) Submitted in writing via the designated Slack channel within seven (7) days of the Owner first becoming aware of the matter; and
(b) In any event, no later than thirty (30) days from the date the issue is alleged to have occurred.

Any claim submitted outside of these time periods shall be deemed time-barred and invalid, and the Owner irrevocably waives the right to pursue such a claim.

Special conditions
Management will be 12% + VAT during the fixed period (6 months.)

Bank Details for Payment

Payee Name: _____

Account No.: _____

Sort Code: _____

Signed

Owner: _____ Date: _____

Agent (Stayful): _____ Date: _____